

Court No. - 40

Case :- WRIT - C No. - 16387 of 2018

Petitioner :- Smt. Rajkumari

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Akhilesh Kumar Shukla

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and Sri Neeraj Agarwal, learned counsel for the respondent Electricity Department.

The petitioner challenges the recovery proceedings with regard to arrears of electricity dues which the respondent alleged to be pending since long.

The petitioner had disputed the utilization of the electricity connection or any consumption relating to a tube-well for which the connection had been granted to the petitioner on the ground that in the year 2013 he had moved an application for shifting of the pole and thereafter he has not utilized any electricity. The husband of the petitioner filed a civil suit, who was the original consumer and after his death the petitioner has come up contending that the order passed arising out of the suit by the appellate Court is in favour of the petitioner. We have considered the submissions raised. The dispute before the Civil Court was with regard to the shifting of double poles and it had got nothing to do with the consumption of electricity. The contention of the petitioner is that since this matter pertaining to the shifting of double poles was pending since 2013 there was no actual consumption and therefore he is virtually questioning the correctness of the realization of the alleged arrears from the petitioner.

The recovery has been set into motion in respect of the arrears and therefore this appears to be essentially a billing dispute.

Consequently we are not inclined to interfere with the same at this stage the reason being that it is a dispute which has its genesis in the shifting of the poles since 2013. The Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the Competent Authority to decide any such dispute even if it is arising out of any assessment. Consequently we dispose of this writ petition with liberty to the petitioner to approach the sixth respondent along with a certified copy of this order who shall examine the grievance of the petitioner and take a decision within six weeks from the date of presentation of certified copy of this order. The writ petition stands disposed with the said directions. The recovery proceedings will abide by the said directions.

Order Date :- 7.5.2018

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